



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

FEB 29 1996

DOT-E 11476

EXPIRATION DATE: January 31, 1998

(FOR RENEWAL, SEE 49 CFR SECTION 107.105)

1. GRANTEE: Schrupp Industries Incorporated,
Parker, Pennsylvania
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of nitrogen in hydraulic accumulators. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Part 173.302(a)(1) and 175.3 in that a non-DOT specification packaging is authorized.
5. BASIS: This exemption is based on the application of Schrupp Industries dated April 28, 1995 and additional information dated July 20, 1995, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Nitrogen, compressed	2.2	UN1066	N/A

7. PACKAGING AND SAFETY CONTROL MEASURES:
 - a. PACKAGING - Packaging prescribed is a steel hydraulic accumulator designed and fabricated in full compliance with Section VIII of the ASME Code and with the following design parameters:

1. A seamless accumulator having a capacity not over 40 gallons, a design pressure not exceeding 5,000 psi, and a minimum 4 to 1 burst to design pressure ratio.

2. Each accumulator must be constructed to relieve pressure without bursting in a fire or must be equipped with a pressure relief device as required in 49 CFR 173.34(d).

- b. TESTING - Each accumulator must be tested without evidence of failure or damage, to at least 1 1/2 times the design pressure prior to each refill and reshipment.
- c. OPERATIONAL CONTROLS - At the time of shipment, the charged pressure at 70°F., must not exceed 70 percent of the design pressure.

8. SPECIAL PROVISIONS:

a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

c. MARKING - Each accumulator must be shipped as an inside packaging in accordance with 49 CFR 173.301(k). Each outside container must be marked "DOT-E 11476" and "NITROGEN - HYDRAULIC ACCUMULATORS".

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, and cargo only aircraft.

10. MODAL REQUIREMENTS:

A copy of this exemption must be carried aboard each cargo vessel, or aircraft used to transport packages covered by this exemption. In accordance with the provisions of 49 CFR Part 107, Appendix B to Subpart B, paragraph 3, the shipper shall furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.

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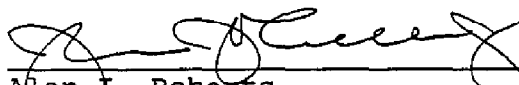
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

2/29/96
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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